

26VECV01302 26VECV01302

County: los-angeles

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Case Number: 26VECV01302 Hearing Date: July 1, 2026 Dept: T

26VECV01302 PNC v Dynamic

Tentative Ruling:

The Court GRANTS Plaintiff's Application for Writ of Possession.

Relevant Background:

This is a breach of contract claim. Plaintiff is PNC Bank, National Association, a successor to PNC Equipment Finance, LLC, who in turn was an assignee from JCB Finance.

Plaintiff alleges that, on January 29, 2025, Defendants Dynamic Environmental Group and Adam Bohannon entered into a written loan and security agreement with Plaintiff. Plaintiff agreed to loan Defendants \$82,625.00 in upfront capital to purchase construction equipment necessary for their business. As part of the agreement, Defendants agreed to pay Plaintiff back in monthly installments over the course of six years. Defendants also agreed to grant Plaintiff a security interest in the equipment itself, as a form of collateral for the loan.

Unfortunately, on August 1, 2025, Defendants failed to make their monthly payment.

On March 4, 2026, Plaintiff brought suit against Defendants, alleging four causes of action: 1) breach of contract, 2) claim and delivery, 3) conversion, and 4) account stated.

On April 7, 2026, Plaintiff filed the instant application for writ of possession. Strangely, Plaintiff appears to have filed the same application twice. One of these applications is scheduled to be heard on July 1, 2026. The second is scheduled for July 2, 2026. From the Court's review of these two applications, the content appears to be identical.

Plaintiff finally served Defendants with notice of this application, as well as the lawsuit itself, on May 14, 2026.

Now, the Court hears Plaintiff's application for writ of possession.

Analysis:

1. Application for Writ of Possession

Plaintiff applies for a writ of possession as to a large piece of construction equipment they helped Defendants finance. (Application for Writ, p. 3:7-10.)

A party may bring an action to recover personal property through a statutory remedy called claim and delivery, or writ of possession, to recover the property immediately at the commencement of the action, without waiting for trial. (See CCP § 512.010 et seq.; *Am. Mach. & Foundry Co. v. Pitchess* (1968) 262 Cal.App.2d 490, 493.) To obtain a writ of possession, the plaintiff must file an application under oath and must include all of the following: (1) the basis of the plaintiff's claim that it is entitled to possession; (2) a showing that the property is wrongfully detained and of the manner in which defendant came into possession; (3) a particular description of the property and a statement of its value; (4) the property's location based on plaintiff's knowledge, information and belief; and (5) a statement that the property has not been seized by statute or execution against it. These required showings and statements may be satisfied by one or more competent declaration filed with the application. (CCP § 512.010.)

In support of this application, Plaintiff provides the declaration of Michael McGinley, Plaintiff's custodian of records. (See generally, McGinley Decl.)

First, Mr. McGinley explains that Plaintiff is entitled to possession of a “JCB 505-20TC Telescopic Handler”, a large piece of construction equipment. (McGinley Decl. ¶ 15.) This machine was Plaintiff’s collateral for a \$82,625.00 loan agreement between Plaintiff and Defendants. (Ibid.) As part of the loan agreement, Defendants agreed to, “grant [Plaintiff] a security interest in (a) the Equipment to the extent of your Interests in the Equipment and any substitution and replacements thereof.” (Id. Ex. 1, ¶ 6.) The contract further states that, in the event of default, “[w]e have the right to require you to make the Equipment available to us for repossession during reasonable business hours or we may repossess the Equipment, so long as we do not breach the peace in doing so, or we may use legal process in compliance with applicable law pursuant to court order to have the Equipment repossessed.” (Id. Ex. 1, ¶ 14.) Mr. McGinley also provides a copy of the financing statement outlining this collateral agreement, which specifically names the telescopic handler as part of the collateral. (McGinley Decl. Ex. 2.) Tying this all together, Mr. McGinley states that Defendants breached their loan agreement on August 1, 2025. (Id. ¶ 8.) Thus, Plaintiff is exercising their legal right under the contract and collateral agreement to repossess the equipment.

Second, Mr. McGinley states that this equipment is being wrongfully retained by Defendants. Specifically, Plaintiff has asked Defendants to return this property, but they have yet to comply. (Id. ¶ 19.) Therefore, Defendants are in wrongful possession.

Third, Mr. McGinley provides the make, model and serial number of this piece of machinery. (Id. ¶ 15.) Additionally, Mr. McGinley characterizes the fair market value of this used machine as \$72,000.00. (Ibid.) Mr. McGinley also establishes some foundation for this claim, stating that, “[a]mongst my duties with Plaintiff, I am required to know the market price for used Collateral and to keep in constant contact with equipment re-marketers. Therefore, based upon my experience as Vice President, Litigation and Recovery for Plaintiff, I am informed and believe and thereon allege that the total fair market value of the Collateral is the amount of \$72,000.00. My opinion of the Collateral’s value is based upon its original price, the equipment age, and forecast of current market values, my conversations with various equipment vendors and based upon my experience in equipment leasing.” (Id. ¶ 22.)

Fourth, Mr. McGinley states that this property is currently

located at “4419 Stansbury Avenue, Sherman Oaks, CA 91423.” (Id. ¶ 17.)

Fifth, Mr. McGinley states that, “was not taken from Plaintiff for a tax, assessment, or fine, pursuant to statute, or seized under execution against Plaintiff.” (Id. ¶ 20.)

Notably, this motion is unopposed.

Thus, the McGinley declaration satisfies all five requirements of an application for writ of possession under CCP § 512.010.

For these reasons, the Court is inclined to GRANT this application.

2. Choice of Law and Venue Provision

However, one issue the Court wishes to flag is that, on page one of agreement provided by Plaintiff, “all disputes under this loan shall be resolved in this jurisdiction and venue of federal court in the eastern district of Pennsylvania or state courts in Montgomery County, Pennsylvania.” (McGinley Decl. Ex. 1, p. 1.)

If this agreement does have a clear choice of law and choice of venue provision, it’s possible that this Court lacks the power to enforce this agreement. The Court intends to raise this issue at the hearing.

Summary

Pending the discussion on the contract’s choice of law provision, the Court’s tentative ruling is to GRANT Plaintiff’s Application for Writ of Possession.

Conclusion:

The Court TENTATIVELY GRANTS Plaintiff’s Application for Writ of Possession.